



POLICE DEPARTMENT

February 6, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202105041 (Incident Date: August 12, 2021) regarding Police Officer Amanda Marrero, Tax No. 957812 (DADS No. 2022-27394)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202105041, pertaining to Police Officer Amanda Marrero. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Marrero would be detrimental to the Police Department's disciplinary process.

While the Police Commissioner agrees with the findings in this matter, the Police Commissioner does not agree that Charges and Specifications are appropriate. Police Officer Marrero's lack of disciplinary or CCRB history should be considered when determining the appropriate level of discipline in this matter. The Police Commissioner believes that Police Officer Marrero can be rehabilitated and her actions, while misguided, were nevertheless in good faith. Thus, in the interests of a fair disciplinary system, the imposition of a Schedule "B" Command Discipline would be appropriate and comport with the principle of progressive discipline.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, based on Police Officer Marrero's lack of disciplinary and CCRB history, the Police Commissioner intends to retain jurisdiction over this matter and issue a Schedule "B" Command Discipline with a penalty of five (5) vacation days.

Yours truly,

A handwritten signature in black ink, appearing to read "L. Soto".

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

February 9, 2023

The Honorable Keechant Sewell
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB v. PO Amanda Marrero
CCRB Case No. 202105041

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated February 6, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue a Schedule “B” Command Discipline with a penalty of forfeiture of five (5) vacation days action against PO Amanda Marrero. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Soto’s notification.

Regarding Specification One (1), (2) and (3) Deputy Chief Soto states that “Police Officer Marrero can be rehabilitated and her actions, while misguided, were nevertheless in good faith.” CCRB disagrees with this determination.

For Specification one (1), Police Officer Marrero threat was a means of exerting power and obtaining compliance in a discourteous manner. The interaction between § 87(2)(b) and Police Officer Marrero is captured on body worn camera footage. At the 03:28 mark, after § 87(2)(b) explains that she was refusing to service the customers, Police Officer Marrero told § 87(2)(b) that the situation would go one of two ways: she would either notarize the document or the case would turn into a criminal investigation. § 87(2)(b) confirmed that she was fine with the circumstances of refusing service. Police Officer Marrero informs § 87(2)(b) that she would have to close the store and asks if she wanted to go to jail. At the 07:14 mark, § 87(2)(b) approaches the counter to assist a customer that is waiting. Police Officer Marrero says, “We’re not conducting business until we conduct our investigation.” She told the customer to take his belongings because “no one is doing business now.” The threat to shut down § 87(2)(b) store and interrupt business was done to forcibly have § 87(2)(b) comply with an action she clearly did not want to partake in. The hostility behind the way Police Officer Marrero interacted with § 87(2)(b) and the customers indicates that none of her actions

leading up to her threat surmounted to good faith.

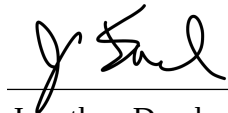
As to Specification two (2), Police Officer Marrero threatened to arrest § 87(2)(b) without sufficient legal authority, repeatedly. Police Officer Marrero stated repeatedly that § 87(2)(b) could not refuse to notarize a document, and as such that would be the basis for her arrest. Complaint Report § 87(2)(b) prepared by Police Officer Marrero, is a harassment report against § 87(2)(b) which documents the dispute between her and the 911 caller § 87(2)(b). The narrative notes that § 87(2)(b) refused to notarize a document for § 87(2)(b) and became irate with her—slamming her hands on the counter and screaming “get out.” Even if § 87(2)(b) was not within her rights as a business owner, this at worst is a civil matter, not a criminal matter. Therefore, it was unreasonable for Police Officer Marrero to threaten § 87(2)(b) with arrest.

Regarding Specification three (3), as stated earlier, Police Officer Marrero conducted an unlawful stop during this incident to conduct a “criminal investigation.” Whether unlawful or not, officers are required to provide business cards prior to the conclusion of a stop, as noted in the patrol guide and the NYC Administrative Code. Police Officer Marrero did not provide § 87(2)(b) with a business card during this incident as required by the NYC Administrative Code.

The mitigated penalty for failure to comply with the Right to Know Act is training specification three is training. The mitigated penalty for the improper threat of enforcement action is forfeiture of 5 penalty days. The mitigated penalty for the improper threat of arrest is forfeiture of 5 penalty days. Even if you insist on treating the penalties for specifications one and two concurrently, there should still be additional training for specification three or an explanation of why you feel this case warrants a deviation from the matrix.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Marrero in this matter, or issue PO Marrero a Schedule B CD with forfeiture of 10 vacation days and additional training.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 10, 2023

Re: CCRB Case No. 202105041 (Incident Date: August 12, 2021) regarding Police Officer
Amanda Marrero, Tax No. 957812 (DADS No. 2022-27394)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated February 9, 2023, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Amanda Marrero, and agree with the CCRB's recommendation for a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days.

Therefore, the Police Commissioner directs that Police Officer Marrero receive a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days and formalized training, in connection with this matter.

Yours truly,

A handwritten signature in black ink, appearing to read "LSoto".

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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